ch. 37; or (4) the release of an obligor or obligors as provided in § 36.4314(d).

This regulation is effective August 6, 1959.

[SEAL] BRADFORD MORSE,
Deputy Administrator.

[F.R. Doc. 59-6476; Filed, Aug. 5, 1959; 8:47 a.m.]

Title 43—PUBLIC LANDS: INTERIOR

Chapter I—Bureau of Land Management, Department of the Interior

APPENDIX—PUBLIC LAND ORDERS

[Public Land Order 1930]

MONTANA

Withdrawing Lands for Use of the Bureau of Land Management as an Administrative Site. Partially Revoking the Executive Order of June 5, 1919 Which Established Public Water Reserve No. 64

By virtue of the authority vested in the President by the act of June 25, 1910 (36 Stat. 847; 43 U.S.C. 141), and otherwise, and pursuant to Executive Order No. 10355 of May 26, 1952, it is ordered as follows:

1. Subject to valid existing rights, the following-described public lands in Montana are hereby withdrawn from all forms of appropriation under the public land laws, including the mining but not the mineral leasing laws or disposals of materials under the act of July 31, 1947 (61 Stat. 681; 30 U.S.C. 601-604), as amended, and reserved for use of the Bureau of Land Management, Department of the Interior, for a radio relay station:

[Montana 030861]

PRINCIPAL MERIDIAN

T. 17 N., R. 20 E.,
Tract 38 (in section 19).
Totaling 3.79 acres.

2. The Executive order of June 5, 1919, which established Public Water Reserve No. 64, is hereby revoked so far as it affects the following-described lands:

[Montana 025424]

PRINCIPAL MERIDIAN

T. 12 N., R. 20 E.,
Sec. 17, NW¼SE¼.
Totaling 40 acres.

3. The State of Montana has waived the preference right of application granted to it by subsection (c) of section 2 of the Act of August 27, 1958 (72 Stat. 928; 43 U.S.C. 851, 852).

4. The lands described in paragraph 2 are located in the mountains southeast of Lewistown, Montana. Topography is rolling to rough with a rocky spur projecting into the southeast corner. Vegetation consists of slender, and Western wheat grass, blue grass, sage brush and weeds.

5. No application for the lands described in paragraph 2 may be allowed under the homestead, desert-land, small tract, or any other nonmineral public-land law unless the lands have already been classified as valuable or suitable for such type of application, or shall be so classified upon the consideration of an application. Any application that is filed will be considered on its merits. The lands will not be subject to occupancy or disposition until they have been classified.

6. Subject to any valid existing rights and the requirements of applicable law, the lands are hereby opened to filing of applications, selections, and locations in accordance with the following:

a. Applications and selections under the nonmineral public-land laws may be presented to the Manager mentioned below, beginning on the date of this order. Such applications and selections will be considered as filed on the hour and respective dates shown for the various classes enumerated in the following paragraphs:

(1) Applications by persons having prior existing valid settlement rights, preference rights conferred by existing laws, or equitable claims subject to allowance and confirmation will be adjudicated on the facts presented in support of each claim or right. All applications presented by persons other than those referred to in this paragraph will be subject to the applications and claims mentioned in this paragraph.

(2) All valid applications under the Homestead, Desert Land, and Small Tract Laws by qualified veterans of World War II or of the Korean Conflict, and by others entitled to preference rights under the act of September 27, 1944 (58 Stat. 747; 43 U.S.C. 279-284, as amended), presented prior to 10:00 a.m. on September 4, 1959, will be considered as simultaneously filed at that hour. Rights under such preference right applications filed after that hour will be governed by the time of filing.

(3) All valid applications and selections under the nonmineral public-land laws, other than those coming under paragraphs (1) and (2) above, presented prior to 10:00 a.m. on December 4, 1959, will be considered as simultaneously filed at that hour. Rights under such applications and selections filed after that hour will be governed by the time of filing.

b. The land has been open to applications and offers under the mineral-leasing laws, and to location for metalliferous minerals. It will be open to location for non-metalliferous minerals under the United States mining laws beginning at 10:00 a.m. on December 4, 1959.

7. Persons claiming veterans preference rights must enclose with their applications proper evidence of military or naval service, preferably a complete photostatic copy of the certificate of honorable discharge. Persons claiming preference rights based upon valid settlement, statutory preference, or equitable claims must enclose properly corroborated statements in support of their claims. Detailed rules and regulations governing applications which may be filed pursuant to this notice can be found in Title 43 of the Code of Federal Regulations.

Inquiries concerning the lands shall be addressed to the Manager, Land Office, Bureau of Land Management, Billings, Montana.

ROGER ERNST,
Assistant Secretary of the Interior.

JULY 30, 1959.

[F.R. Doc. 59-6468; Filed, Aug. 5, 1959; 8:45 a.m.]

[Public Land Order 1932]

[Fairbanks 019125]

ALASKA

Withdrawing Public Lands for Use of the Department of the Air Force for Military Purposes

By virtue of the authority vested in the President and pursuant to Executive Order No. 10355 of May 26, 1952, it is ordered as follows:

1. Subject to valid existing rights, the following-described public lands in Alaska are hereby withdrawn from all forms of appropriation under the public land laws, including the mining and mineral-leasing laws, but not the disposal of materials under the act of July 31, 1947 (61 Stat. 681; 30 U.S.C. 601-604) as amended, and reserved for use of the Department of the Air Force, for military purposes:

POINT BARROW AIR FORCE STATION

Tract A

A parcel of land situated 4.5 miles northeast of Barrow in the Second Judicial Division, State of Alaska, more specifically described as follows:

Beginning at USC&GS Station "Point Barrow—South Base," thence
West, 4,632.83 feet;
North, 146.00 feet, to a point on the mean high water line of the fresh water lake (unnamed);
Northerly, 3,550.00 feet, along said m.h.w. line;
N. 50° E., 700.00 feet;
North, 750.00 feet;
East, 600.00 feet, to a point on the mean high tide line of a salt water lagoon;
Southerly and Easterly, 6,265.00 feet, along said m.h.t. line;
East, 500.00 feet;
South, 2,036.30 feet;
West, 867.12 feet to the point of beginning.

The tract described contains 267.87 acres.

2. The reservation made by this order shall be subject to the withdrawal made by Executive Order No. 3797-A of February 27, 1923, for oil and gas as Navy Petroleum Reserve No. 4 and to the jurisdiction granted to the Department of the Navy over Naval Petroleum Reserves by the act of August 10, 1956 (70A Stat. 457-462; 10 U.S.C. 7421-7438), and shall take precedence over but not otherwise affect the withdrawal made by Public Land Order No. 82 in connection with the prosecution of the war, and Public Land Order No. 324 of August 14, 1946, reserving this and other lands for classification and designation as a native reserve.

3. Scientific Personnel of the Arctic Research Laboratory shall have access to